



FEMA

May 4, 2026

Christina Curry  
Acting Director  
California Governor's Office of Emergency Services  
3650 Schriever Avenue  
Mather, California 95655

Tyson Pogue  
Sheriff - Coroner  
Madera County  
2725 Falcon Dr.  
Madera, CA 93637

Re: Second Appeal – Madera County, PA ID: 039-99039-00, FEMA-4699-DR-CA, Grants  
Manager Project (GMP) 742129, Snow Assistance

Dear Christina Curry and Tyson Pogue:

This is in response to the February 9, 2026 transmission from the California Governor's Office of Emergency Services, which forwarded the referenced second appeal on behalf of Madera County (Applicant). The Applicant is appealing the U.S. Department of Homeland Security's Federal Emergency Management Agency's (FEMA) denial of \$119,000.00 for repair of damage caused during the performance of snow removal activities.

As explained in the enclosed analysis, I have determined snow assistance was not specifically authorized in this emergency declaration, nor did the Applicant demonstrate its snow-related activities were necessary to complete otherwise eligible work. As such, the damage was not caused during the performance of eligible emergency work, and the requested costs are ineligible. Accordingly, I am denying this appeal.

This determination is the final decision on this matter pursuant to 44 C.F.R. § 206.206.

Sincerely,

A handwritten signature in blue ink, appearing to read "Robert Pesapane".

Robert M. Pesapane  
Director, Public Assistance

Enclosure

cc: Robert Fenton  
Regional Administrator  
FEMA Region 9

**SECOND APPEAL ANALYSIS**  
**Madera County, PA ID 039-99039-00**  
**FEMA-4699-DR-CA, Grants Manager Project 742129**  
**Snow Assistance**

## **Background**

On April 3, 2023, the President declared a major disaster for the state of California as a result of a severe winter storm, with an incident period from February 21, 2023, to July 10, 2023. The president did not authorize snow assistance for Madera County (Applicant) in the disaster declaration. The Applicant requested snow removal activities for the county to be added to the disaster declaration. The Applicant also requested Public Assistance (PA) funding for the repair of damage to curbing, asphalt dikes, and other road components incurred during snow removal operations. FEMA created Grants Manager Project 742129 to document the Applicant's request for \$119,000.00.

On January 14, 2025, FEMA issued a Determination Memorandum denying funding for the project, because snow assistance was not specifically authorized for the Applicant in the disaster declaration, and the Applicant did not demonstrate the snow-related activities were necessary to perform otherwise eligible work.

### *First Appeal*

On March 13, 2025, the Applicant submitted a first appeal requesting \$119,000.00 for repairing damage incurred as a result of snow removal activities. The Applicant acknowledged its initial request for snow assistance to be added to the declaration did not fully meet the requirements outlined in FEMA's policy. It noted it revised its request to seek snow assistance as a contiguous county to Mariposa County, but had not received a response to this request.

The Applicant contended the snow removal conducted was not for the clearance of one lane for general emergency services operations or clearance of snow from around buildings to allow for general operation of schools, hospitals, or other facilities, but rather to facilitate the repair of downed power lines and eliminate the need for temporary housing. The Applicant stated the local power provider, Pacific Gas and Electric (PG&E), struggled to access locations to repair power lines due to the large amount of snow blocking public roadways.

On May 1, 2025, the California Governor's Office of Emergency Services (Recipient) transmitted the first appeal, recommending that FEMA uphold its denial of the costs at issue. The Recipient stated the Applicant had not demonstrated the snow removal operations and resulting road damage were eligible for PA funding, because the disaster declaration did not authorize snow assistance for the Applicant.

On November 13, 2025, the FEMA Region 9 Regional Administrator denied the appeal. FEMA found that because the disaster declaration did not specifically authorize snow assistance, snow related activities were only eligible if they were necessary to perform otherwise eligible work, and the Applicant did not demonstrate they were. In addition, although the Applicant asserted its claim was eligible as an emergency protective measure to repair downed power lines, FEMA found that it did not demonstrate it had legal responsibility for any work performed. On the

contrary, FEMA noted that PG&E was responsible for repairing the damaged power lines and providing outage support/resources to affected customers.

### *Second Appeal*

On January 8, 2026, the Applicant submitted a second appeal, requesting \$119,000.00. The Applicant reiterates its position from the first appeal, including its claim that its contiguous county request remains unresolved. The Applicant states that, while PG&E retained responsibility for repairing damaged power lines, Madera County retained undisputed legal jurisdiction and responsibility for maintaining emergency access on County-owned roadways. The Applicant asserts the act of clearing snow from these roadways was not undertaken on behalf of PG&E's utility repair obligation, but rather pursuant to the Applicant's independent legal responsibility to maintain emergency access within its jurisdiction.

The Applicant claims its roadway clearance actions had a direct and necessary nexus to the restoration of power and protection of public health and safety, and that snow removal necessary to repair downed power lines is eligible under FEMA policy. The Applicant argues that the snow removal was narrowly targeted to restore emergency access along critical corridors, enabling PG&E crews, emergency responders, and evacuation resources to reach affected populations and infrastructure.

On February 9, 2026, the Recipient transmitted the second appeal without its support.

### **Discussion**

FEMA is authorized to provide assistance for emergency protective measures to save lives or to protect public health and safety.<sup>1</sup> Snow-related activities, including snow removal, de-icing, salting, snow dumps, and sanding of roads and other eligible facilities, are only eligible emergency protective measures when a winter storm results in record or near-record snowfall.<sup>2</sup> In such cases, FEMA authorizes snow assistance by county based on a finding that the county received record or near-record snow fall or meets contiguous county criteria.<sup>3</sup> For severe winter storm declarations that do not specifically authorize snow assistance, FEMA only provides PA funding for limited snow-related activities that are necessary to perform otherwise eligible emergency work, such as snow removal in the immediate area required to repair downed power lines, while normal snow removal from roads (including salting and sanding) is ineligible.<sup>4</sup>

The applicant may damage improved property, supplies, or equipment during the performance of eligible emergency response activities or debris removal operations; the repair of such damage is only eligible as part of the respective emergency work project (Category A or B) if the damage: was caused by severe conditions resulting from the incident; was unavoidable; and was not due

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<sup>1</sup> Robert T. Stafford Disaster Relief and Emergency Assistance Act § 403(a)(3), Title 42, United States Code § 5170b(a)(3) (2018); Title 44 of the Code of Federal Regulations (C.F.R.) § 206.225(a)(1) (2022); *Public Assistance Program and Policy Guide*, FP 104-009-2, at 51, 110 (June 1, 2020) [hereinafter *PAPPG*].

<sup>2</sup> 44 C.F.R. § 206.227; *PAPPG*, at 238.

<sup>3</sup> *PAPPG*, at 238.

<sup>4</sup> *Id.* at 135.

to improper or excessive use.<sup>5</sup> Repair of damage caused by snow-related activities conducted outside of an authorized snow assistance period is ineligible.<sup>6</sup>

Here, notwithstanding the Applicant's assertions that the snowstorm produced record snowfall amounts, and despite its request for snow assistance as a contiguous county to Mariposa County, the President did not authorize snow assistance for the Applicant in the disaster declaration. Because the disaster declaration did not specifically authorize snow assistance, snow-related activities are only eligible if they are necessary to perform otherwise eligible work. This is an extremely limited exception.<sup>7</sup> The Applicant contends its snow removal efforts are eligible because they were necessary to repair downed power lines, and were targeted to restore emergency access along critical corridors, enabling PG&E crews, emergency responders, and evacuation resources to reach affected populations and infrastructure.<sup>8</sup> However, continuous town-wide snow plowing of roads is consistent with normal snow removal operations and is therefore ineligible. Furthermore, the Applicant did not provide documentation (e.g., photographs and locations identifying immediate areas of downed power lines) demonstrating that snow-related activities were necessary to repair downed power lines.<sup>9</sup> Instead, the Applicant referred to communications with PG&E in which PG&E expressed appreciation for the assistance from the Applicant's crew with snow removal, which enabled PG&E to isolate residences and make assessments/restorations, but the communications do not specifically mention work with downed power lines.<sup>10</sup> Because the Applicant has not demonstrated its snow-related activities were necessary to perform otherwise eligible emergency work, and because snow assistance was not specifically authorized in the declaration, repair to any damage caused by its snow-related activities is also ineligible.<sup>11</sup>

## Conclusion

Snow assistance was not specifically authorized in this emergency declaration, nor did the Applicant demonstrate its snow-related activities were necessary to complete otherwise eligible work. As such, the damage was not caused during the performance of eligible emergency work, and the requested costs are not eligible, and this appeal is denied.

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<sup>5</sup> *Id.* at 138-139.

<sup>6</sup> *Id.* See also *id.* at 134-135.

<sup>7</sup> FEMA Second Appeal Analysis, *Terryville Fire District*, FEMA-4322-DR-NY, at 3 (Apr. 4, 2019).

<sup>8</sup> Second Appeal Letter from Sheriff, Madera Cnty., to Asst. Adm'r, Office of Response & Recovery, FEMA, at 3-4 (Jan. 8, 2026) [hereinafter *Applicant's Second Appeal*].

<sup>9</sup> FEMA Second Appeal Analysis, *Lubbock-Cooper Independent School District*, FEMA-4255-DR-TX, at 2 (Aug. 4, 2017).

<sup>10</sup> See *Applicant's Second Appeal*, Enclosure 1, Attachment b, Supporting Documents, at 16.

<sup>11</sup> *PAPPG*, at 139.